



File No.: EXP202208325

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated May 4, 2023, and based on the following

FACTS

FIRST: On May 4, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202208325, by virtue of which a fine of 300 euros (THREE HUNDRED euros) was imposed on A.A.A. for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant on May 12, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00610/2022, the following was recorded:

“FIRST: It is recorded, according to documentation provided by the complainant, that the respondent has installed four surveillance cameras in their home that, due to their location and orientation, are capable of capturing images of the complainant's home.”

THIRD: The appellant submitted a reconsideration appeal on May 31, 2023, to this Spanish Agency for Data Protection, basing it fundamentally on:

“That a resolution has been notified to them in File 202208325, dated May 4, 2023, by which a sanction of 300 Euros is imposed on this party due to the alleged infringement of Article 5.1 c) of the GDPR, classified under Article 83.5 of the same regulation, also ordering the removal of the cameras installed by this party or their reorientation so that in the viewing of the images observed, common areas of the home, the adjoining home, and public thoroughfare are not captured.

That, by virtue of this document, within the time granted for this purpose, being dissatisfied with the content of said resolution, stated in strict terms of defense, in accordance with the provisions of Article 48.6 of the LOPD in relation to Article 123 of the LPAC, formulates RECONSIDERATION APPEAL, based on the following

C/ Jorge Juan, 6

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28001 – Madrid

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2/9

ALLEGATIONS:

FIRST.- The Administrative File referenced in the heading of this document arises from the complaint filed by B.B.B. regarding a video surveillance system installed by this party at ***ADDRESS.1.

Accepting the claims of B.B.B., the Spanish Agency for Data Protection considers it proven that the video surveillance system in question, which consists of 4 cameras, is capable of capturing images of the claimant's residence.

As a result, a fine of 300 Euros is imposed on the appellant for allegedly violating Article 5.1 c) of the GDPR, with the facts being subsumed under the infringement typified in Article 83.5 of the same regulation.

SECOND.- It is inferred in the resolution that this party, upon receiving the transfer of the complaint, did not present any allegations. It is stated that the notification occurred on August 4, 2022.

However, this party has not been aware of such notification. Nor has the transfer been sent to them

along with the resolution that is now being appealed.

We understand that in this way, the right to defense and the right to be informed of the accusation recognized in Article 24.2 of the Spanish Constitution (CE) have been violated. As a consequence of the Administration's actions, this party was indeed unable to express their disagreement with the complaint raised against them.

In this regard, we bring to attention the Constitutional Court ruling STC 84/2022, of June 27, in which the Constitutional Court clarified that if the activity carried out by the administration prevents the appellant from being aware of the act and, therefore, from defending themselves, a clear violation of the right to defense and the right to be informed of the accusation recognized in Article 24.2 CE is generated.

The Chamber states that: "...we consider that the activity carried out by the administration has not respected the right to defense and the right to be informed of the accusation recognized in Article 24.2 CE. Blaming the claimant for not being aware of the designated electronic address, the content of the request, and the other communications made electronically, based on the way they traced the letter "v" when writing their email address in the declaration made on December 16, 2016, implies attributing to this circumstance manifestly disproportionate consequences, given the adverse effects produced in the sanctioning procedure. In the opinion of this court, the fact that they wrote that letter without total calligraphic precision does not constitute a situation comparable to cases where, according to our doctrine, the reported injury is to be attributed to the conduct of the affected party due to their inexperience, negligence, or carelessness. It is worth noting that, in practice, it is not uncommon for the handwriting of certain letters not to conform exactly to their orthodox format, in addition to the relevance of the subjective valuation component that leads a third party to interpret which letter has actually been transcribed. Aside from the above, in the present case, it should be noted that the first letters of the correct email address —javn— coincide with the initials of the claimant's full name and both surnames, a fact that the administration was aware of.

C/ Jorge Juan, 6

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28001 – Madrid

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3/9

In light of the aforementioned provisions, it is clear that the lack of notification and the consequent omission of the hearing procedure violates the rights of the interested party in the proceedings, and the resolution must be considered null and void by law.

On this matter, the Supreme Court has already ruled in its judgment STS of May 18, 2020, stating that the omission of the hearing procedure in the sanctioning context is of such relevance that it leads to the absolute nullity of the actions taken. Indeed, not only is the right to defense of the interested party violated, but the legally established procedure is also disregarded.

In this regard, it is important to emphasize that by virtue of Article 47 of the LPAC, the following are null and void by law:

"1. The acts of the Public Administrations are null and void in the following cases:

a) Those that violate rights and freedoms that are subject to constitutional protection.

[...]

e) Those issued disregarding totally and absolutely the legally established procedure or the norms that contain the essential rules for the formation of the will of collegiate bodies."

In a subsidiary manner, it should be highlighted that Article 48 of Law 39/2015 defines as voidable acts those that incur any infringement of the legal order, including abuse of power. We therefore understand that the resolution is null and void by law or, subsidiarily, voidable, and must be revoked and rendered ineffective.

THIRD.- In any case, in a subsidiary manner in case the previous argument is dismissed. It is necessary to make some clarifications regarding the substance of the resolution that is now being challenged.

Firstly, Article 5.1 c) of the GDPR states that personal data shall be:

"c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are

processed ('data minimization')."

Furthermore, Article 83.5 of the same Legal Body states that "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" However, the system installed by the appellant does not infringe any of the aforementioned provisions. The 4 cameras, in fact, point to the corral of A.A.A. and its entrance. They are not at the door but on the balcony. The cameras only record the exterior of the appellant's home and the entrance to their domicile. For their installation, this party has complied at all times with the current regulations on data protection, which require the completion of video surveillance forms, which we attach. This party has done so by commissioning the installation to professionals. A photographic proof of the sign is attached.

C/ Jorge Juan, 6
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28001 – Madrid
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4/9

placed by the installing company DAYSA at the exit door of the property owned by the appellant, as required by the applicable regulations. As well as a copy of the invoice paid on October 17, 2020, to said company for the amount of 591.09 Euros, evidencing the work carried out.

The claimant himself, on the other hand, when the cameras were installed, requested the presence of the Civil Guard, who went to the appellant's home and, after observing the number of cameras and their placement, concluded that everything was correct, not filing a report or initiating proceedings. Furthermore, there is no camera at the entrance door. Therefore, it is clear that the claimant's right to privacy is not violated, and the processing of personal data is in accordance with the provisions of Article 5.1 c) of the GDPR.

FOURTH.- It is worth recalling that the sanctioning power of the Administration constitutes a manifestation of the State's *ius puniendi* recognized in Article 25 of the Spanish Constitution.

It is peacefully accepted by Doctrine and Jurisprudence the necessity, repeatedly proclaimed by the Constitutional Court, to apply to such power the guiding principles and guarantees of Criminal Law. Thus, the constitutional Jurisprudence has reiterated the application of the principles and guarantees derived from Article 25 of the Spanish Constitution applicable to criminal proceedings, specifically, legality, typicity, non-retroactivity, culpability, proportionality, and non bis in idem.

In the same way, the full application of the rights and guarantees of Article 24 of the Spanish Constitution has been declared, especially the right to the presumption of innocence and the prohibition of defenselessness. One of the cardinal principles of contemporary Criminal Law -both substantive and procedural- is the one that proclaims the presumption of innocence of any person accused of an infringement until their guilt has been legally declared. This principle, incorporated in a preferred position in Article 24 of the Spanish Constitution, produces an immediate procedural consequence that consists of shifting the burden of proof to the accuser and, in the case of the sanctioning power, to the Administration since, as the Constitutional Court has repeatedly pointed out, although Article 24 of the Spanish Constitution does not expressly refer to the exercise of the sanctioning power of the Administration, the procedural guarantees established in that provision are applicable in sanctioning Administrative Procedures.

This implies, of course, that in order to impose a sanction, it will be necessary to substantiate the factual assumption to which the legal consequence that the Administration intends to impose is linked. Therefore, since there is no fact that can be classified as an infringement, there can be no sanction, and this procedure should be archived.

It is emphasized that the Administration does not have a license to decide *ad nutum*, as its actions are closely connected to the public interest that must be satisfied.

The prohibition of arbitrariness by public authorities is one of the supra-principles of law enshrined in Article 9.3 of our Constitution and which, in the administrative sphere, is regulated in Article 37 of Law

39/2015, of October 1, on Common Administrative Procedure, which states:

"1. Administrative resolutions of a particular nature may not violate what is established in a general provision, even if they originate from an organ of equal or higher hierarchy than that which issued the general provision.

C/ Jorge Juan, 6

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28001 – Madrid

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5/9

2. The administrative resolutions that violate what is established in a regulatory provision are null, as well as those that incur any of the causes listed in Article 47." According to the Judgment issued by the Constitutional Court on September 6, 2000, "everything that is or appears to be lacking objective foundation, incongruent, or contradictory with the reality that must serve as the basis for any decision, and detached or foreign to the foundation must extend to sufficiently motivate administrative decisions, in accordance with reasonable, just, objective, and duly motivated criteria."

In what now concerns us, we insist that it has not been proven that the video surveillance system installed by the appellant constitutes an undue intrusion into the claimant's privacy, being adequate and in accordance with current legality.

FIFTH.- The following documents are submitted along with this written statement:

1. Invoice paid to the company DAYSA.
2. Practical video surveillance sheet.
3. Photographic evidence of the sign placed by the installing company DAYSA.

For the reasons stated, we REQUEST: That this written statement of allegations and its copy, along with the attached documents, be accepted, and that, by virtue of this, a Recurso de Reposición (Appeal for Reinstatement) be considered filed against the Resolution dated May 4, 2023, which imposes a sanction of 300 Euros on this party for the alleged infringement of Article 5.1 c) of the GDPR, classified in Article 83.5 of the same regulation, also ordering the removal of the cameras installed by this party or their reorientation so that in the viewing of the images observed, common areas of the dwelling, the adjacent dwelling, and the public road are not captured, and that it be admitted and processed according to the procedure until its full acceptance, declaring its nullity, or subsidiarily its annulability, revoking and rendering it ineffective."

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, we proceed to respond to them.

C/ Jorge Juan, 6

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28001 – Madrid

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6/9

-The appellant alleges that they have not received any notification of the transfer made on July 28, 2022, and the reiteration made on September 22, 2022, so they could not express their disagreement with the claim made against them. They also allege a lack of notification of the initiation of the

sanctioning procedure and omission of the hearing process.

In this regard, this Agency informs that there are acknowledgments of receipt in the file for the transfer of the complaint received by the appellant on August 4, 2022, and for the receipt of the initiation agreement of the sanctioning procedure dated March 21, 2023, also received by the appellant, so it cannot be accepted that they were unaware of it.

In the initiation agreement itself, it was stated:

"Article 64.2.f) of the LPACAP -a provision of which the complained party was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution.

In this case, the initiation agreement of the sanctioning procedure determined the facts that specified the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed.

Therefore, considering that the complained party has not made allegations against the initiation agreement of the procedure and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution."

This Agency does not consider that the right to defense of the interested party has been violated nor that the legally established procedure has been disregarded.

-The appellant alleges that the system installed by the appellant does not infringe Article 5.1.c of the GDPR, as the installed cameras only record the exterior of the appellant's dwelling and the entrance to their own home; that the installation has at all times complied with the current regulations on data protection, entrusting the installation to professionals, so the right to privacy of the claimant is not violated.

In this regard, this Agency points out that the appellant does not provide, in the documentation accompanying their appeal for reinstatement, any image indicating what the actual field of vision of the cameras is, so the sanctioning resolution is not discredited.

-The appellant alleges that one of the cardinal principles of contemporary substantive and procedural criminal law is the one that proclaims the presumption of innocence of any person accused of an infringement until their guilt has been legally declared. This principle, incorporated in a preferred position in Article 24 of the Spanish Constitution, produces an immediate procedural consequence that consists of shifting the burden of proof to the accuser and, in the case of the sanctioning power,

C/ Jorge Juan, 6

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28001 – Madrid

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7/9

to the Administration. In what is now of interest, it has not been demonstrated that the video surveillance system installed by the appellant constitutes an undue intrusion into the privacy of the claimant, being adequate and in accordance with current legislation.

In this regard, this Agency recalls, as has already been indicated, that the physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of access, comparison or interconnection, restriction, erasure or destruction;”

The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

In turn, Article 24 of the GDPR states:

"Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this Regulation. Such measures shall be reviewed

and updated when necessary."

(the underlining corresponds to the AEPD)

In the present case, the appellant has not demonstrated, either during the instruction of the sanctioning procedure, during which no allegations were presented nor evidence proposed, nor in the documentation submitted with the appeal, that the field of vision of the installed cameras affects solely and exclusively their own dwelling, which means that the claim presented to this Agency by the claimant cannot be considered unfounded, nor can it be considered that the principle of presumption of innocence is being violated, given that, according to the aforementioned Article 24 of the GDPR, it has not been demonstrated that the data processing carried out by the cameras for which they are responsible is in accordance with that Regulation.

Apart from the fact that the respondent has not succeeded in proving that the processing was not excessive, there is sufficient evidence in the file from the outset, namely the images provided by the claimant, which in our judgment substantiate the excess in processing by the appellant.

C/ Jorge Juan, 6

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28001 – Madrid

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8/9

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having regard to the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on May 4, 2023, in file EXP202208325.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

Furthermore, the sanctioned party must comply with the measures imposed by the aforementioned resolution within one month from the receipt of this resolution on appeal.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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28001 – Madrid
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9/9

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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